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THE RIGHT TO BE VISIBLE

The ongoing hijab row has left us shocked. The hijab is worn globally by Muslim women in public places, including schools. It is even more shocking that the debate is unfolding in India, a land where many religions were founded and where religious freedom has existed for aeons, since well before the Indian Constitution provided for it. It is for this religious freedom that the sixth Sikh guru, Sri Guru Teg Bahadurji, gave his life 347 years ago, so Kashmiri Pandits may wear their *janeyu*. He did it without questioning if the *janeyu* is an essential requirement of *sanatan dharma*, let alone if it is discriminatory. And his father, Guru Hargobind Sahibji, built the Guru Ki Maseet for Muslims in Hargobindpur, during the Mughal period.

There is no jurisprudential reason for the hijab to be banned in India's educational institutions. The interim order of the Karnataka High Court has imposed a de facto hijab ban on affected Muslim students when there is no legal basis for it; it has also effectively violated their fundamental right to education. This violation could have been avoided. The high court could have ordered the affected institutions to accommodate their female Muslim students by providing them an alternative and safe place to study within their premises, until the case is disposed of. It is also unhelpful that the Supreme Court has refused to expedite a hearing of a petition filed against the high court's interim order. UNITED SIKHS has filed a complaint with the National Human Rights Commission (NHRC) to take cognisance of this matter as this is a contravention of India's Constitution which protects the right to practice one's faith and the right to education.

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Freedom of religion or belief is a private right in a public place. You cannot expect a person to hold a belief or to practise his/ her religion privately and on a part-time basis, as it would be antithetical to the universality of the religion or belief. The same must apply to manifesting one's belief or religion. One practises one's belief or religion by manifesting it in one's life. Religious minorities often stand out visibly when the manifestation of their religion creates an identity that goes against the default. Sikhs have not been discriminated against in the West because of their visibility but because of an ignorant public. In India, a turbaned Sikh makes the public feel safe, especially in a context where crimes against women are rife. Women in hijab must, likewise, be looked upon with respect as people who are faithful to their precepts.

It is settled international law that it is not the business of a secular court to determine what is an essential religious requirement. As long as a religious belief is genuine, a secular court is bound to accept it. In 2018, our legal team filed a petition in the Indian Supreme Court against a turban ban imposed by a cycling association on a Sikh cyclist. During the hearing, the bench asked: "Is the turban a requirement of the Sikh religion?" We were taken aback at the question, for it suggested the court was not prepared to take judicial notice of the widespread social understanding about the centrality of turbans in Sikh attire. We were not upset. Instead, we spent long and fruitful hours going through Sikh scriptures and historical texts to satisfy the judges.

In the West, the Sikhs willy-nilly became the target of hate crime and laws enacted in response to 9/11. The public had been told that the 9/11 terror was perpetrated by turbaned men. The ignorant public transferred their fear to turbaned Sikhs. The concern for security at airports and other public venues led to indiscriminate searches of turbans and the kirpan was targeted as it triggered metal detectors. Sikhs had to fight for the right to not be discriminated against for wearing their articles of faith. The UNITED SIKHS legal team filed three communications at the UNHRC in 2008 against France's ban on the turban in schools and for ID photos. We won all three cases but France has ignored the UNHRC's determination and the ban continues. ■